

8	Dang vs. Nguyen 30-2024- 01403534-CU- OR-CJC	Demurrer to Second Amended Complaint The demurrer to second amended complaint of defendants Vinh The Nguyen and Van Nguyen is OVERRULED in part and SUSTAINED in part. <u>Second Cause of Action for Promissory Estoppel - OVERRULED</u> The court already addressed defendants’ arguments on the second cause of action for promissory estoppel in ruling on defendants’ motion for judgment on the pleadings on the first amended complaint. There has been no substantial change in pleading. The court will not change its prior ruling and cautions counsel to refrain from raising in subsequent motions identical issues previously ruled upon. <u>Fourth Cause of Action for Quiet Title – SUSTAINED with 10 days leave to amend</u> While Plaintiff alleges she has “tendered the full repayment of the secured amount to Freedom Mortgage” (SAC ¶ 76), the SAC does not address the \$700,000 loan from Alliance Portfolio, which was also secured by a deed of trust recorded against the property. (SAC ¶ 9.) The declaration relied on by Plaintiff purporting to show the loan was paid in full is not appropriate in opposing a demurrer. Motion to Strike Portions of Second Amended Complaint The motion to strike portions of second amended complaint of defendants Vinh The Nguyen and Van Nguyen is GRANTED in part. Plaintiff has sufficiently alleged facts supporting a prayer for specific performance concerning repayment of the two additional loans. Plaintiff has also sufficiently alleged a cause of action for fraud (i.e., intentional misrepresentation), which supports punitive damages. The motion is DENIED on these grounds. However, Plaintiff has not alleged any contract, statute or law which allows for the recovery of attorney fees or statutory damages. The motion is GRANTED on this ground. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.
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9	Rhee vs. United Wholesale Mortgage LLC 30-2025-01513641-CU-OR-CJC	Demurrer to First Amended Complaint Defendant Newrez LLC dba Shellpoint Mortgage Servicing's Demurrer to Plaintiff Thomas Rhee's First Amended Complaint is OVERRULED in part and SUSTAINED in part with 10 days leave to amend. Defendant's request for judicial notice (ROA 57) is GRANTED. <u>First cause of action for violation of the Homeowner Bill of Rights - OVERRULED</u> Plaintiff sufficiently alleges a claim pursuant to Civil Code section 2923.7. The court need not address the other theories. <u>Second cause of action for wrongful foreclosure - SUSTAINED</u> Plaintiff does not allege tender or excuse from tender. Plaintiff alleges only "Plaintiff was in active review for loss mitigation, submitted a valid listing agreement, and had substantial equity to cure the loan." (FAC ¶ 33.) <u>Third cause of action for breach of contract – OVERRULED</u> Plaintiff alleges sufficient facts to support a cause of action for breach of contract. (FAC ¶¶ 37-40.) <u>Fourth cause of action for breach of implied covenant of good faith and fair dealing - OVERRULED</u> As Plaintiff sufficiently alleges a cause of action for breach of contract, the Court OVERRULES the demurrer to the fourth cause of action as well. <u>Fifth cause of action for unfair competition – SUSTAINED</u> Plaintiff alleges he "made his last loan payment in January 2024" and "ceased payments in February 2024." (FAC ¶ 17.) As the default occurred prior to the unfair acts alleged as the basis of his Unfair Competition Law claim, Plaintiff lacks standing to bring this cause of action. <u>Sixth cause of action for declaratory relief – OVERRULED</u>
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